

M/s Supreme Electrocast Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Limited

High Court of Judicature at Allahabad · Division Bench · 31 May 2016 · Writ-C No. 73762 of 2005 · **Writ petition dismissed; interim order vacated.**

HEADNOTE

A writ seeking to quash an additional-security bill, strike down clause 4.20 of the U.P. Electricity Supply Code, 2005 as ultra vires Section 47 of the Electricity Act, 2003, compel a pre-payment meter, and refund security with interest, is dismissed where the petition discloses no ground for interference.

FACTUAL SUMMARY

M/s Supreme Electrocast Pvt. Ltd. challenged Paschimanchal Vidyut Vitran Nigam Limited's 22 January 2005 bill demanding additional security of Rs. 73,11,400 and a 11 February 2005 Ministry of Power clarificatory letter. The petitioners also attacked clause 4.20 of the U.P. Electricity Supply Code, 2005 as ultra vires the Electricity Act, 2003, sought installation of a pre-payment meter under Section 47(5) without further security under the repealed law, and claimed refund of security already paid with 12% interest under Section 47(4). None appeared when the petition was called in revised.

HOLDING-UNITS

INTERPLAY · UP-2005::4.20

pre-payment meter and additional security

HOLDING

A writ seeking to quash an additional-security demand, declare clause 4.20 of the U.P. Electricity Supply Code, 2005 ultra vires Section 47 of the Electricity Act, 2003, and compel installation of a pre-payment meter with refund of security and interest, is dismissed where the petition discloses no ground for any of those reliefs. ¶ 3-4

PRINCIPLE TAGS

prepayment-meter-exemption-conditional-on-availability A writ seeking to quash an additional-security bill, strike down clause 4.20 of the U.P. Electricity Supply Code, 2005 as ultra vires Section 47 of the Electricity Act, 2003, compel a pre-payment meter, and refund security with interest, is dismissed where the petition discloses no ground for interference. ¶ 3-4